

BRANDWOOP PTY LTD

CONFIDENTIALITY & INFORMATION PROTECTION AGREEMENT

1. PARTIES

This Confidentiality & Information Protection Agreement ("Agreement") is entered into on the 12th of June 2026.

BETWEEN

BrandWoop Pty Ltd

ABN: 63 692 878 649

Brisbane, Queensland, Australia

("BrandWoop" or "Company")

AND

Recipient

Name: B.M.S.Pabasara Fernando

Company (if applicable): _____

Country: Sri Lanka

Address: NO 525, 23 Mile Post, Jayanthipura, Polonnaruwa

Email: pabasaraf79@gmail.com

Phone: +94781440205

("Recipient")

The Company and Recipient are collectively referred to as the "Parties".

2. PURPOSE

The Recipient may receive access to confidential and proprietary information belonging to:

- BrandWoop;
- BrandWoop clients;
- BrandWoop prospects;
- BrandWoop suppliers;
- BrandWoop contractors;
- BrandWoop referral partners;
- BrandWoop strategic partners.

The purpose of this Agreement is to protect such information against unauthorised disclosure, use, copying, exploitation, loss or misuse.

3. DEFINITIONS

Confidential Information

Confidential Information includes all information disclosed directly or indirectly by or through BrandWoop, whether oral, written, electronic, visual, recorded or otherwise.

Including but not limited to:

- client information;
- prospect information;
- lead information;
- supplier information;
- contractor information;
- referral partner information;
- pricing information;
- quotations;
- proposals;
- financial information;
- project information;
- software specifications;
- software architecture;
- databases;
- APIs;
- credentials;
- passwords;
- infrastructure details;
- source code;

- repositories;
- technical documentation;
- business plans;
- sales information;
- marketing information;
- internal communications;
- AI systems;
- automation systems;
- workflows;
- trade secrets;
- intellectual property;
- proprietary methodologies.

Confidential Information includes information belonging to BrandWoop clients and third parties disclosed through BrandWoop.

Confidential Information also includes:

- copies;
 - screenshots;
 - notes;
 - extracts;
 - recordings;
 - analyses;
 - summaries;
 - derivative materials.
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4. CONFIDENTIALITY OBLIGATIONS

The Recipient shall:

- (a) keep all Confidential Information strictly confidential;
- (b) use Confidential Information solely for authorised purposes;
- (c) protect Confidential Information using reasonable security measures;
- (d) prevent unauthorised disclosure or misuse;
- (e) immediately notify BrandWoop of any actual or suspected breach.

The Recipient shall not disclose Confidential Information without prior written approval.

5. RESTRICTIONS ON USE

The Recipient shall not:

- (a) copy Confidential Information except where reasonably necessary;
 - (b) use Confidential Information for personal benefit;
 - (c) use Confidential Information to compete with BrandWoop;
 - (d) use Confidential Information to obtain clients or opportunities;
 - (e) disclose Confidential Information to unauthorised persons.
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6. CLIENT INFORMATION PROTECTION

The Recipient acknowledges that BrandWoop client information is confidential.

The Recipient shall not:

- contact clients for unrelated purposes;
 - use client information for personal business;
 - retain client information after engagement;
 - create independent relationships using such information.
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7. AI SYSTEM RESTRICTIONS

Without prior written approval, the Recipient shall not upload Confidential Information to:

- ChatGPT;
- Claude;
- Gemini;
- Copilot;
- DeepSeek;
- Grok;
- public AI systems;
- machine learning platforms.

This restriction applies whether information is:

- modified;
- summarised;

- anonymised;
 - transformed.
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8. THIRD-PARTY DISCLOSURE

The Recipient shall not disclose Confidential Information to:

- subcontractors;
- freelancers;
- consultants;
- development companies;
- service providers;
- cloud providers not approved by BrandWoop;

without written approval.

9. PERSONAL DEVICES

Where Confidential Information is stored on personal devices, the Recipient shall:

- (a) maintain reasonable security;
 - (b) prevent unauthorised access;
 - (c) remove Confidential Information upon request;
 - (d) certify deletion when required.
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10. CYBERSECURITY REQUIREMENTS

The Recipient shall:

- use multi-factor authentication;
- use strong passwords;
- secure devices appropriately;
- maintain software updates;
- protect credentials.

The Recipient shall not share credentials.

11. SECURITY INCIDENTS

The Recipient shall notify BrandWoop within twenty-four (24) hours of becoming aware of:

- data breaches;
 - credential compromise;
 - malware incidents;
 - ransomware attacks;
 - accidental disclosure;
 - unauthorised access.
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12. OWNERSHIP OF INFORMATION

All Confidential Information remains the exclusive property of BrandWoop or the relevant third-party owner.

No ownership rights are transferred by disclosure.

13. NO LICENCE GRANTED

Nothing in this Agreement grants the Recipient:

- ownership rights;
- licence rights;
- intellectual property rights;

except as expressly authorised.

14. RETURN OR DESTRUCTION OF INFORMATION

Upon request or termination, the Recipient shall promptly:

- (a) return Confidential Information;

(b) destroy Confidential Information;

(c) cease all unauthorised use.

BrandWoop may require written certification of compliance.

15. EXCLUSIONS

Confidential Information does not include information which:

(a) becomes publicly available through no fault of the Recipient;

(b) was lawfully known before disclosure;

(c) is independently developed without reference to Confidential Information;

(d) must be disclosed by law.

Where legally permitted, BrandWoop shall be notified prior to disclosure.

16. AUDIT RIGHTS

BrandWoop may reasonably request evidence that:

- information has been deleted;
- repositories have been transferred;
- credentials have been surrendered;
- obligations have been complied with.

The Recipient shall cooperate reasonably.

17. REMEDIES

The Recipient acknowledges that unauthorised disclosure may cause substantial and irreparable harm.

BrandWoop may seek:

- injunctions;

- specific performance;
- equitable relief;
- interim orders;
- damages;
- legal costs.

Such remedies are cumulative and not exclusive.

18. INDEMNITY

The Recipient indemnifies BrandWoop against losses arising from:

- (a) breach of confidentiality;
 - (b) unauthorised disclosure;
 - (c) misuse of information;
 - (d) security failures caused by the Recipient;
 - (e) intentional misconduct.
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19. SURVIVAL

The obligations under this Agreement survive:

- termination of employment;
- termination of consultancy arrangements;
- termination of contractor engagements;
- completion of projects;
- termination of business relationships.

Confidentiality obligations continue indefinitely unless the information lawfully enters the public domain.

20. ASSIGNMENT

BrandWoop may assign this Agreement to:

- subsidiaries;
- affiliates;
- successor entities;
- purchasers of BrandWoop's business.

The Recipient may not assign this Agreement without written approval.

21. GOVERNING LAW

This Agreement shall be governed by the laws of Queensland, Australia.

22. CROSS-BORDER ENFORCEMENT

BrandWoop may seek enforcement or protective relief in:

- Australia;
 - Sri Lanka;
 - or any jurisdiction where the Recipient resides, conducts business or holds assets.
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23. SEVERABILITY

If any provision is held invalid or unenforceable, the remaining provisions continue in full force and effect.

24. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement concerning confidentiality and information protection.

Any amendment must be in writing and signed by BrandWoop.

25. EXECUTION

SIGNED for and on behalf of BrandWoop Pty Ltd

Name: _____

Position: _____

Signature: _____

Date: _____

SIGNED by the Recipient

Name: B.M.S.Pabasara Fernando

Company (if applicable): _____

Signature:



Date: 16 June 2026

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